

বাংলাদেশ সুপ্রীমকোর্ট

হাইকোর্ট বিভাগ

আপীল সম্পর্কিত

ফৌজদারী

জেলা: **Kishoregonj**ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন
নং**Abul Bashar and another**

আবেদনকারী

মাধ্যম

Mr. Md. Alauddin, Advocate

বনাম

The State

Mr. M.D. Rezaul Karim, D.A.G along with

Ms. Ferdousi Akter, A.A.G

Mr. Ashraf Uddin Khan, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডাদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	01.04.2024	Records be called for. Let the realization of fine be stayed. Let a rule be issued calling upon the opposite party to show cause as to why the judgment and order dated 13.03.2024 passed by the learned Additional Sessions Judge, 2nd Court, Kishoregonj in Criminal Appeal No. 190 of 2023 dismissing the appeal and thereby affirming the judgment and order of conviction of sentence dated 20.02.2023 passed by the learned Chief Judicial Magistrate, Kishoregonj in C.J.M. Case No. 2925 of 2014 and G.R. Case No. 741(2)2012 arising out of Kuliarchar Police Station Case No. 03 dated 02.11.2012 convicting the petitioners under section 325 of the Penal Code but modifying the sentence of imprisonment of the petitioner No. 1 namely, Abul Bashar by reducing it to 01 (one) year 06 (six) months from 02 (two) years and maintaining the fine of Taka 3000/- (three thousand) in default to suffer simple imprisonment for 01 (one) month and modifying the sentence of imprisonment of petitioner No. 2 namely, Rashel Miah by reducing it to 01 (one) year from 01 (one) year 06 (six) months and maintaining the fine of Taka 3000/-(three thousand) in default to suffer simple imprisonment for 20 (twenty) days should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশের ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict appellant petitioners 1. Abul Bashar, 2. Rashel Miah, both sons of Md. Morshid Miah be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate Kishoregonj. The rule is made returnable within 4(four) weeks from date. The petitioners shall put in 2(two) sets of requisites within 7 days, for service of notice of the Rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioners unless requisites are put in (vide HCD Rules, Chapter IV Rule 3(6)).
		Kashem/B.o

দ্রষ্টব্যঃ কালা কালিত অফিস নোটর একটি ক্রমিক নম্বর এবং লাল কালিত কোর্টর আদশর আরকটি ক্রমিক নম্বর হইব।
নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩